Board Policy 2.50.020-P

Student Education Records

I. Education records are those records maintained by PPS~~the District~~ that are directly related to a student.

II. ~~In addition to the protection and procedures included in this policy and accompanying administrative directive, students with disabilities and their parents have additional rights under federal and state law with regard to student education records. Those rights and procedures have been included in the Special Education Manual located on the District website. ¶~~

~~III.~~ The primary reason for the keeping and maintaining of education records for students is to help the individual student in their educational development by providing pertinent information for the student, their teachers, and their parents/guardians. These records also serve as an important source of information to assist students in seeking productive employment and/or post-high school education.

IV. ~~The District~~PPS will~~shall keep~~ maintain confidential education records for students in a manner that conforms with ~~as required by~~ state and federal laws and regulations.

V. Information recorded on official education records should be carefully selected, accurate, and verifiable, and should have a direct and significant bearing upon the student's educational development.

VI. PPS~~The District~~ has an affirmative duty to provide records requested by another school district to determine a student's appropriate placement.

VII. PPS will comply with a request from parents/guardians or a student 18 years or older to inspect and review records without unnecessary delay. PPS will give parents of students with disabilities, and students 18 years or older with disabilities, an opportunity to examine all student education records in accordance with state and federal law, including all education records with respect to the identification, evaluation, and educational placement of the student and the provision of a free appropriate public education to the student.

VIII. PPS~~The District~~ will~~shall~~ give full rights to education records to either parent, or legal guardian, unless PPS~~the District~~ has been provided legal evidence that specifically revokes or modifies these rights. However, once the student reaches age 18, those rights transfer to the student.

IX. A copy of this policy and related administrative directive~~regulation~~ will~~shall~~ be made available upon request by parents/guardians, ~~and~~ students 18 years or older or emancipated, and the general public.

Legal References: ~~ORS 30.864; ORS 107.154; ORS 326.565; ORS 326.575; ORS 343.177 (3); OAR 166-405-0010 to 166-415-0010; OAR 581-021-0210 to 0440; OAR 581-022-1660; OAR 581-022-1670; Education of the Handicapped Act of 1975, as amended, 20 U.S.C. Sections 14001427, as amended and renamed Individuals with Disabilities Education Act (IDEA), P.L. 101- 476, 104 Stat 1103 (1990), as amended P.L. 105-17 (1997).~~ Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g; 34 CFR Part 99 (2000). Assistance to States for the Education of Children with Disabilities, 34 CFR § 300.501 (2000);~~:~~ Individuals with Disabilities Education Act, 20 USC §§ 1400-1419; ORS 107.154; ORS 326.565; ORS 326.575; ORS 343.181; OAR 581-021-0220 to 581-021-0440.

History: Adpt. 6/71; Amd. 8/11/75; Amd. 10/1/81; Amd. 5/84 ed.; Amd. 5/8/86; Amd 7/10/86; Amd. 5/14/87; Amd. 12/14/89; Amd. 1/24/91; Amd. 10/22/92; Amd. 9/02, BA 2424; Amd 10/23.